

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANT'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

TABLE OF CONTENTS

PAGE(S)

I.	INTRODUCTION	1
II.	SUMMARY OF ARGUMENT.....	1
III.	STATEMENT OF THE FACTS.....	2
	A. The Parties.....	2
	B. Factual and Procedural Background.....	2
	C. Plaintiff’s Original Suit Arises Out of Allegations That the Insured Hit Plaintiff With His Car, a Claim That Was Ultimately Rejected at Trial Despite the Jury’s Consideration of the “Objective Liability Evidence” in Question.	3
	D. Defendant CSAA Initially Denied Plaintiff’s Claim and Subsequently Had No Role in Litigation, Aside from Retaining Insurance Defense Counsels and Funding the Defense.....	5
IV.	LEGAL STANDARD	6
V.	LEGAL ARGUMENT.....	7
	A. The FAC’s Deficiencies Under Code Civ. Proc § 430.10.....	7
	1. No Jurisdiction.....	7
	2. Another Action Pending.....	8
	3. No Facts Sufficient to Constitute a Cause of Action.....	8
	i. The FAC fails to State a Claim for Fraud.....	9
	ii. The FAC fails to State a Claim for Violation of the UCL.....	10
	4. Uncertainty.....	11
	B. The FAC Targets Protected Litigation Conduct under Civ. Code § 47(b) ³	12
	C. Collateral Estoppel.....	12
	D. Both Claims in the FAC are Barred by the Statute of Limitations.....	13
	F. No Standing.....	14
V.	CONCLUSION.....	15

³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

TABLE OF AUTHORITIES

CASES	PAGE(S)
<i>ABF Capital Corp. v. Berglass</i>	6
(2005) 130 Cal.App.4th 825, 833	
<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i>	11
(2019) 38 Cal.App.5th 677, 695	
<i>Butler v. Sequeira</i>	6
(1950) 100 Cal.App.2d 143, 146	
<i>Cansino v. Bank of America</i>	13, 14
(2014) 224 Cal.App.4th 1462, 1472	
<i>Coffman Specialties, Inc. v. Department of Transportation</i>	7
(2009) 176 Cal.App.4th 1135, 1144	
<i>Dalton v. East Bay Mun. Utility Dist.</i>	7
(1993) 18 Cal.App.4th 1566, 1570-1571	
<i>F.E.V. v. City of Anaheim</i>	12
(2017) 15 Cal.App.5th 462, 471	
<i>Mahan v. Charles W. Chan Ins. Agency, Inc.</i>	11
(2017) 14 Cal.App.5th 841,	
<i>Moradi-Shalal v. Fireman's Fund Ins. Companies</i>	10
(1988) 46 Cal.3d 287, 306	
<i>Norton v. Hines</i>	14
(1975) 49 Cal.App.3d 917	
<i>Omega Video v. Superior Court</i>	14
(1983) 146 Cal.App.3d 470	
<i>Orcilla v. Big Sur, Inc.</i>	9
(2016) 244 Cal.App.4th 982	
<i>Price v. Dames & Moore</i>	6
(2001) 92 Cal.App.4th 355, 359	
<i>Rakestraw v. California Physician's Services</i>	6
(2000) 81 Cal.App.4th 39, 43	
<i>Rannard v. Lockheed Aircraft Corp.</i>	6
(1945) 26 Cal.2d 149, 156-157	
<i>Rico v. Nasser Bros. Realty Co.</i>	12
(1943) 58 Cal.App.2d 878, 882	
<i>Rochin v. Pat Johnson Manufacturing Co.</i>	7
(1998) 67 Cal.App.4th 1228, 1237	
<i>Serrano v. Priest</i>	6
(1971) 5 Cal.3d 584, 591	
<i>Service by Medallion, Inc. v. Clorox Co.</i>	9
(1996) 44 Cal.App.4th 1807, 1816	
<i>Shaolian v. Safeco Ins. Co.</i>	14
(1999) 71 Cal.App.4th 268	
<i>Singh v. Lipworth</i>	12
(2014) 227 Cal.App.4th 813, 826	

1	<i>U.S. v. Throckmorton</i>	8, 9
2	(1878) 98 U.S. 61, 65	
3	<i>Williams v. Beechnut Nutrition Corp.</i>	11
4	(1986) 185 Cal.App.3d 135	
5	<i>Wouldridge v. Burns</i>	12
6	(1968) 265 Cal.App.2d 82, 84	
7	<i>Young v. Gannon</i>	6
8	(2002) 97 Cal.App.4th 209, 220	
9	<i>Zhang v. Superior Court</i>	10
10	(2013) 57 Cal.4th 364, 369	

STATUTES

11	California Business & Professions Code § 17200	2, 10, 13
12	California Code of Civil Procedure § 430.10	6, 7
13	California Code of Civil Procedure § 430.50	6
14	California Code of Civil Procedure § 425.10	6
15	California Code of Civil Procedure § 904.1(a).....	7
16	California Code of Civil Procedure § 338	13
17	California Civil Code § 47(b)	1, 2, 7, 12

OTHER AUTHORITIES

18	<i>Rosario v. Abdelhalim, Case No. A173827</i>	2, 8
19	California Court of Appeal, First District	

1 Defendants CSAA INSURANCE EXCHANGE (“CSAA” or “Defendant”) submits the
2 following Memorandum of Points and Authorities in Support of its Demurrer to Plaintiff
3 FRANCISCUS DYLAN ROSARIO’s (“Plaintiff”) First Amended Complaint (“FAC”). (*See* RFJN
4 Ex. A, *Plaintiff’s FAC*).

5 I. INTRODUCTION

6 Plaintiff’s First Amended Complaint (“FAC”) is an improper collateral attack on a valid jury
7 verdict and judgment entered by this Court following a full and fair trial in April 2025. Plaintiff’s
8 underlying case was a personal injury case where the jury returned a defense verdict on liability.
9 Rather than pursue relief through the appellate process—which Plaintiff has in fact already
10 initiated—Plaintiff attempts to relitigate issues previously raised, litigated, and rejected by the jury
11 and the Court. Plaintiff now targets the original defendant’s insurance carrier, CSAA—in its own
12 capacity and for the acts of insurance defense counsels—for all their combined litigation conduct in
13 denying liability and proceeding to defeat Plaintiff’s personal injury lawsuit at trial.

14 The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative
15 theory that the entire defense team lied to this Court about evidence that was actually presented at
16 trial, but which Plaintiff was unable to use effectively before the jury. In short, the jury considered
17 the evidence but disagreed with Plaintiff on its importance. A good faith dispute over liability cannot
18 justify initiating a subsequent action targeting the defense for its litigation posture and conduct.
19 Setting aside the plethora of factual errors, Plaintiff’s FAC, on its face, is subject to demurrer
20 because Plaintiff’s claims, even if true, cannot obtain the requested relief.

21 Plaintiff’s entire FAC is subject to demurrer without leave to amend.

22 II. SUMMARY OF ARGUMENT

23 Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and
24 this Court’s valid judgment—while his appeal on the underlying case remains pending. The FAC
25 focuses on Defendant’s litigation conduct—in its own capacity, and by and through its counsels—
26 resulting in a defense verdict. Plaintiff’s factual allegations target conduct that is squarely protected
27 under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendant’s pre-trial

28 ///

1 investigation and litigation conduct. Therefore, Defendant has concurrently filed a Special Motion
2 to Strike under Code Civ. Proc. § 425.16.

3 Neither Plaintiff's First Cause of Action for Fraud and Deceit, nor his Second Cause of
4 Action for Violation of Business and Professions Code § 17200 (UCL) can survive demurrer.

5 First, the Court does not have jurisdiction to hear what is, in fact, an appeal of this Court's
6 prior jury verdict and final judgment. Second, Plaintiff's entire theory is, in reality, an improper
7 collateral attack on a prior valid judgment.¹ Third, Plaintiff's other pending actions—including,
8 crucially, his pending appeal—related to this same underlying case bar the present lawsuit.²

9 Fourth, Plaintiff does not have standing against CSAA *third party's* insurance carrier. Fifth,
10 Plaintiff cannot state facts sufficient to constitute a viable cause of action against Defendant. Sixth,
11 certain of Plaintiff's factual allegations are barred by the pertinent statute of limitations. Seventh,
12 all activity alleged in the FAC improperly targets Defendant's protected litigation conduct under
13 Civil Code § 47(b). And finally, eighth, the entire FAC is uncertain and legally unsupportable.

14 Therefore, the FAC is subject to demurrer without leave to amend.

15 **III. STATEMENT OF THE FACTS**

16 **A. The Parties**

17 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

18 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for
19 SUBHI ABDELHALIM ("Insured") during the underlying trial. Plaintiff now sues CSAA directly.

20 **B. Factual and Procedural Background**

21 Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original
22 defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance
23 carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of
24 ABDELHALIM's policy of insurance. This demurrer is filed on behalf of CSAA. (*See* RFJN **Ex. C**,
25 *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and

26 ¹ Plaintiff's original Complaint in this action explicitly represented to the Court that "Plaintiff does not seek reversal
27 or modification of any judgment in the Underlying Action." (*See* RFJN **Ex. T**, *Plaintiff's Original Complaint* ¶ 31)
(*emphasis added*); (*but see* RFJN **Ex. B**, *Plaintiff's FAC in Related Case*) (seeking to "set aside judgment").

28 ² (*See Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (*see also* RFJN **Ex. Q**, *Plf's Notice of*
Appeal; RFJN **Ex. R**, *Plf's Notice of Designating Record on Appeal*).

1 Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as “PSA”) were
2 CSAA’s retained insurance defense counsels who obtained a defense verdict at Plaintiff’s
3 underlying trial. (See RFJN **Ex. D**, *Defendant’s Substitution of Counsel, Rosario v. Abdelhalim*,
4 *Case No. CGC-21-594102*).

5 Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have
6 denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense
7 counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s
8 earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—
9 which Plaintiff lost by defense verdict. Now, Plaintiff seeks to recast his prior litigation as a claim
10 against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl
11 around all the same issues in the underlying case—differences of opinion on the weight of certain
12 trial evidence (911 calls, bodycam footage, and CAD logs).

13 It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective
14 liability evidence” (See *FAC* ¶ 4); however, the Court denied Defendant’s motions in limine
15 targeting this evidence. (See RFJN **Ex. E**, *Def’s MIL # 6*; RFJN **Ex. F**, *Def’s MIL # 8*; RFJN **Ex. G**,
16 *Def’s MIL # 17*; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free
17 to present to the jury, the complained-of “objective liability evidence.” (See *FAC* ¶ 4).

18 **C. Plaintiff’s Original Suit Arises Out of Allegations That the Insured Hit Plaintiff**
19 **With His Car, a Claim That Was Ultimately Rejected at Trial Despite the Jury’s**
20 **Consideration of the “Objective Liability Evidence” in Question**

21 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-
22 scooter incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s
23 vehicle while Plaintiff was walking (or riding, it is unclear) a scooter through an intersection.
24 Plaintiff filed suit against Insured, alleging personal injuries, and the matter proceeded to trial. All
25 the “foundational objective liability evidence” (See *FAC* ¶ 4) (discussing 911 calls, bodycam
26 footage, and CAD logs) referenced in Plaintiff’s *FAC* was submitted to the jury and testimony was
27 offered by both sides on the relevance (or irrelevance) of that evidence. Ultimately, a defense verdict
28 was returned in favor of the Insured. The jury found that the Insured—Subhi Abdelhalim—was
simply not negligent in causing the incident.

1 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial
2 judge: the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic],
3 accompanying his motions, Plaintiff drew specific attention to all the same factual complaints he
4 makes in this current FAC, which impute the acts of PSA as to Defendant (CSAA):

- 5 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the
6 official police records”; (*See* RFJN **Ex. O**, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 7 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured
8 premier legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 9 3) Official 911 emergency records contain multiple admissions by the defendant, and
eyewitness testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core
part of [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

10 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions
11 seeking to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same
12 evidentiary arguments presented here, in his FAC. (*See* RFJN **Ex. P**, *Order Denying Plf’s “Prayer”*
13 *and 170.6*). Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual
14 allegations against CSAA for its counsels’ litigation activity.

15 The jury thereafter returned a defense verdict on liability.

16 After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this
17 Court’s judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See* RFJN
18 **Ex. I**, *Plf’s JNOV*; *see* RFJN **Ex. J**, *Plf’s Decl. ISO JNOV*; *see* RFJN **Ex. K**, *Def’s Opp. to Plf’s*
19 *JNOV*); ii) Motion to Vacate; iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for
20 New Trial (*See* RFJN **Ex. L**, *Plf’s Mtn for New Trial*; RFJN **Ex. M**, *Def’s Opp. to Plf’s Mtn for New*
21 *Trial and Mistrial*); v) Motion for Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte
22 Request for Stay; and viii) a Request for statement of Decision. All Plaintiff’s post-trial motions
23 were denied. (*See* RFJN **Ex. N**, *Order on Plf’s Post-Trial Mtns*). Crucially, in those post-trial
24 motions, Plaintiff essentially all the same meritless arguments, and others, surrounding Defendant’s
25 alleged “mishandling” of the “objective liability evidence” and alleged “fraud on the Court.” (*See*
26 *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all those same arguments in this FAC against
27 the trial victor’s insurance carrier.

28 ///

D. Defendant CSAA Initially Denied Plaintiff's Claim and Subsequently Had No Role in Litigation, Aside from Retaining Insurance Defense Counsels and Funding the Defense

Plaintiff alleges in his related case that everyone involved on the defense team (including the original party defendant) committed “fraud on the Court.” (See RFJN **Ex. B**, *Plaintiff's FAC in Related Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA commencing with its initial claim denial—from February 2021—and culminating in CSAA “fund[ing] and direct[ing] the defense in the underlying action.” (*FAC* ¶ 22F). The FAC alleges a series of factual allegations against CSAA, related to CSAA’s litigation conduct, including:

- 1) CSAA issued “a pre-litigation ... liability-claim denial letter made knowingly or recklessly and used as institutional leverage to discourage or curtail an injured claimant’s pursuit of a valid claim (a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated, in substance, that it had “concluded” its investigation and “concluded” its insured was not liable. (*FAC* ¶ 2)
- 3) the Denial Letter representation of a “concluded” investigation was materially false when made because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and foundational objective liability evidence for the incident, including:
 - a. 911 audio;
 - b. body-worn camera footage; and
 - c. computer aided dispatch records. (*FAC* ¶ 4)
- 4) “Plaintiff alleges that CSAA’s later claim activity corroborates the falsity” of the initial denial letter. (*FAC* ¶ 22D)
- 5) “Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action, Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading representations regarding receipt, possession, and prior production of the same foundational objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this continuity between CSAA’s pre-litigation misrepresentation and its litigation-stage denial posture further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.” (*FAC* ¶ 22F)
- 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the governing legal standard and foundational evidence” resulting in “a trial that was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (*FAC* ¶ 25A)

///

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

IV. LEGAL STANDARD

Generally, “[a] demurrer to a complaint or cross-complaint may be taken on the whole complaint...or any of the causes of actions stated therein.” (Cal. Code Civ. Proc. (“C.C.P.”), § 430.50.) A pleading may be objected to by a demurrer if the pleading does not state facts sufficient to constitute a cause of action or if it is uncertain, or the person filing the pleading does not have the legal capacity to sue. (C.C.P. §430.10.) A pleading is uncertain if it is ambiguous or unintelligible. (*Id.*) A demurrer challenges the sufficiency of a complaint by raising questions of law. (*ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) This means that a complaint must state facts sufficient to constitute a cause of action upon which relief may be based. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220.)

Moreover, a complaint must contain a statement of the facts constituting the cause of action in ordinary and concise language. (C.C.P. § 425.10(a)(1).) It must “set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source, and extent of the cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.) As such, a plaintiff must show the complaint alleges facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physician’s Services* (2000) 81 Cal.App.4th 39, 43.) A demurrer for uncertainty is intended to be directed at the uncertainty existing in the allegations actually made, not the failure to incorporate sufficient facts in the pleading. (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 146.)

When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication. (*ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

Finally, the burden of proving a reasonable possibility of curing the defect in a complaint dismissed on demurrer is squarely on the plaintiff. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 359.) A demurrer looks only to the face of the pleadings and to matters judicially noticeable, and not to the evidence or other extrinsic matters. (*Id.*) A trial court does not abuse its discretion by sustaining a demurrer without leave to amend if it appears that under applicable substantive law

1 there is no reasonable possibility that an amendment could cure the complaint's defect. (*Coffman*
2 *Specialties, Inc. v. Dept. of Transp.* (2009) 176 Cal.App.4th 1135, 1144; *Dalton v. East Bay Mun.*
3 *Utility Dist.* (1993) 18 Cal.App.4th 1566, 1570-1571.)

4 **V. LEGAL ARGUMENT**

5 The entire FAC is subject to demurrer for a host of substantive and procedural reasons,
6 including: 1) the Court does not have jurisdiction over this matter, with Plaintiff's appeal pending.
7 2) Plaintiff has other actions pending; 3) the FAC fails to state facts sufficient to constitute a cause
8 of action; 4) the entire FAC is uncertain and legally unsupportable; 5) the FAC targets Defendant's
9 protected litigation conduct under Civil Code § 47(b); 6) the FAC is an improper collateral attack;
10 7) the claims are barred by the pertinent statute of limitations; 8) Plaintiff does not have standing.

11 Therefore, the FAC is subject to demurrer without leave to amend.

12 **A. The FAC's Deficiencies Under Code Civ. Proc. § 430.10**

13 The FAC has a bevy of bases for demurrer, as enumerated in Code Civ. Proc. § 430.10,
14 which provides in relevant part:

15 The party against whom a complaint ... has been filed may object, by demurrer ...
16 to the pleading on any one or more of the following grounds:

17 (a) The court has no jurisdiction of the subject of the cause of action alleged in the
18 pleading....

19 (c) There is another action pending between the same parties on the same cause of
20 action....

21 (e) The pleading does not state facts sufficient to constitute a cause of action.

22 (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes
23 ambiguous and unintelligible.

24 **1. No Jurisdiction**

25 This Court does not have jurisdiction to hear an appeal this Court's own prior entry of
26 judgment. Plaintiff's entire FAC in reality is an unlawful and improper appeal at the Superior Court
27 level, masquerading as a new lawsuit. Code Civ. Proc. § 904.1(a) provides: that "[a]n appeal, other
28 than in a limited civil case, is to the court of appeal," including from "a judgment." Further, "once
a judgment has been entered, the trial court loses its unrestricted power to change that judgment."
Rochin v. Pat Johnson Manufacturing Co. (1998) 67 Cal.App.4th 1228, 1237.

///

1 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying
2 case, which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in
3 this present FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227
4 Cal.App.4th at 826); (see also RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN **Ex. P**,
5 *Order Denying Plf’s “Prayer” and 170.6*); (RFJN **Ex. S**, *Notice of Entry of Judgment*). Moreover,
6 and crucially, Plaintiff’s appeal of the underlying litigation is still pending. Hence, this Court lacks
7 jurisdiction to hear the allegations as listed in the FAC.

8 2. Another Action Pending

9 The FAC is subject to demurrer as there are, in fact, not just one but two (2) other actions
10 pending. First, there is Plaintiff’s pending appeal of the underlying jury verdict and judgment. (See
11 *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; RFJN **Ex. Q**, *Plf’s Notice of*
12 *Appeal*; RFJN **Ex. R**, *Plf’s Notice of Designating Record on Appeal*). At a minimum, Plaintiff’s
13 pending appeal seeking to set aside the very judgment justifies demurrer.

14 Second, there is yet another action pending, entitled *Rosario v. Abdelhalim, et al.*, San
15 Francisco County Case No. CGC-25-631801. (See also RFJN **Ex. B**, *Plaintiff’s FAC in Related*
16 *Case*). Notably, Plaintiff’s statement in this case that “Plaintiff does not seek reversal or
17 modification of any judgment in the Underlying Action.” (See RFJN **Ex. T**, *Plaintiff’s Original*
18 *Complaint* ¶ 31) (*emphasis added*) is a patent misrepresentation to this Court, based on the
19 allegations in the related case that seeks that very result. Regardless, these other pending actions—
20 crucially, and most importantly, the appeal—justifies the demurrer of the FAC.

21 3. No Facts Sufficient to Constitute a Cause of Action

22 As a threshold matter, Plaintiff is clearly trying to assail a valid jury verdict and judgment—
23 or, at a minimum, punish the original defendant’s insurance carrier for providing a meritorious
24 defense in obtaining that judgment.

25 In contrast to Plaintiff’s effort here, the U.S. Supreme Court has long held: “[t]here are no
26 maxims of the law more firmly established, or of more value in the administration of justice, than
27 [those] ... designed to prevent repeated litigation between the same parties in regard to the same
28 subject of controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis added*.)

1 Here, as a threshold matter, Plaintiff’s true effort is to punish the defense for its victory on
2 the underlying jury trial. This is undeniably an attempt at a “repeated litigation” touching on all the
3 “the same subject of controversy.” *Throckmorton, supra*, 98 U.S. at 65. For this reason alone, the
4 entire FAC is subject to demurrer.

5 Still, the FAC fails to state facts sufficient to constitute a valid cause of action, for either of
6 the alleged claims: first, Fraud; or second, violation of the UCL.

7 **i. The FAC fails to State a Claim for Fraud.**

8 The FAC fails to adequately allege fraud insofar as each and every element of that claim is
9 not properly pled and therefore subject to demurrer.

10 “A complaint for fraud must allege the following elements: (1) a knowingly false
11 representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance
12 by the plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44
13 Cal.App.4th 1807, 1816. “Misrepresentation, even maliciously committed, does not support a cause
14 of action unless the plaintiff suffered consequential damages.” (*Orcilla v. Big Sur, Inc.* (2016) 244
15 Cal.App.4th 982, 1008.)

16 Here, Plaintiff cannot possibly demonstrate the required elements for fraud. First,
17 Defendant’s representations (Feb. 2021 denial letter and “representations in Court”) were not false.
18 CSAA denied liability and the jury agreed, culminating in the rendering of a defense verdict on
19 liability. Moreover, those other allegation in the FAC fare no better. Similarly, the FAC’s allegations
20 that i) “CSAA funded and directed the defense” (*FAC* ¶ 22F); and that CSAA-funded counsel
21 “subsequently repeated and perpetuated the denial pattern in court by making false and misleading
22 representations regarding receipt, possession, and prior production of the same foundational
23 objective evidence CSAA had failed to obtain before issuing the Denial Letter”; (*Ibid.*) and finally,
24 iii) that all this culminated in “a trial that was corrupted by the ongoing consequences of CSAA’s
25 initial misrepresentation.” (*FAC* ¶ 25A). None of these allegations constitute “knowingly false
26 representations.” *Clorox, supra*, 44 Cal.App.4th at 1816. All these allegations substantiate is a good
27 faith dispute over the interpretation of evidence and liability. And ultimately, the jury agreed with
28 CSAA’s position on the interpretation and relevance of that evidence, in rendering a defense verdict.

1 Second, CSAA had no “intent to deceive.” On the contrary, CSAA’s intent in issuing the
2 denial letter was to apprise Plaintiff of a true fact: *CSAA was denying the claim for lack of liability*
3 *on the part of its Insured*. This was a disputed claim. Were courts to treat a disputed claim for lack
4 of liability as *fraud*, such a policy would lead to cascading and unending litigation—an absurd result.

5 Third, Plaintiff had no *reliance* on CSAA’s denial posture—maintained in denial letters and
6 in Court. On the contrary, Plaintiff returned CSAA’s denial with disagreement and a lawsuit.

7 Fourth, and finally, Plaintiff has no cognizable damage. All Plaintiff’s cited damages are
8 related to his “forced third party litigation and ...attorney-fee damages.” (*FAC* p. 9.) This is not an
9 item of damage as it is precluded by the Economic Loss Rule. This flies in the face of the American
10 Rule, where each side bears its own attorneys’ fees, at trial. All Plaintiff’s other cited damages fare
11 no better as they are merely an attempt to repackage his underlying “bodily injury liability claim,”
12 as a fraud case. (*FAC* ¶ 33.)

13 **ii. The FAC fails to State a Claim for Violation of the UCL.**

14 For the same reasons discussed above, Plaintiff cannot prevail on his UCL claim. As a
15 threshold matter, there was nothing fraudulent or false about CSAA’s claim denial in February
16 2021—the claim was, as CSAA stated, denied. That was a true fact when stated. Neither can there
17 be any unfairness to that claim denial as the jury agreed and rendered a defense verdict on that same
18 claim. Finally, to the extent Plaintiff’s FAC alleges that CSAA made “in court” ... “false and
19 misleading representations” regarding the “foundational objective evidence,” this, again is barred
20 by the litigation privilege and cannot constitute a claim under the UCL.

21 A “plaintiff may not use the UCL to ‘plead around’ an *absolute* bar to relief” *Zhang v.*
22 *Superior Court* (2013) 57 Cal.4th 364, 369; (see also *Moradi-Shalal v. Fireman’s Fund Ins.*
23 *Companies* (1988) 46 Cal.3d 287, 306 (“[N]o enforceable claim accrues against the insurer until the
24 insured’s liability is in fact established.”) Indeed, “[t]he *Moradi-Shalal* court made it plain that ...
25 violations of [Ins. Code] section 790.03(h) are themselves not actionable.” *Zhang, supra*, 57 Cal.4th
26 at 369.

27 The language of Business and Professions code § 17200 states that “unfair competition shall
28 mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive,

1 untrue or misleading advertising and any act prohibited by Chapter 1.” This section, colloquially
2 referred to as the UCL, or Unfair Competition Law, is designed to protect consumers against
3 predatory practices by businesses. This section is not meant to be a means to seek redress for a denial
4 of a claim against a third party’s insurance policy, but rather to prevent unfair competition in the
5 marketplace. Further, the Code imposes no duty on CSAA (a third party in the original matter) to
6 provide evidence from their investigation into the event involving their insured, nor does it seek to
7 impose liability on Defendant for issuing a denial letter based upon their good faith belief (and
8 ultimately vindicated at trial) that their insured was not at fault. Further, CSAA simply has no UCL
9 liability to this *third-party* Plaintiff, in light of Plaintiff’s complete failure to establish any liability
10 as to the Insured: Subhi Abdelhalim. This alone is dispositive to this claim. Thus, the FAC is subject
11 to demurrer without leave to amend.

12 4. Uncertainty

13 The entire FAC is unintelligible and ambiguous, with such little substance that it confuses
14 the defense as to what he alleges. Only when “a complaint contains substantive factual allegations
15 sufficiently apprising defendant of the issues it is being asked to meet, [can it] survive a demurrer.”
16 (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135.) Generally, “demurrers for
17 uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38
19 Cal.App.5th 677, 695 (*citing Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th
20 841.))

21 Here, the FAC does not properly explain cognizable bases for its claims. For one, much the
22 allegations seem to focus on the conduct of CSAA’s retained trial counsels—not this demurring
23 Defendant. Further, Plaintiff does not plead with the required particularity the fraud element of his
24 claim. While demurrers for uncertainty are normally disfavored, the FAC does not explain a
25 cognizable basis for relief, or an actual cause of action.

26 ///

27 ///

28 ///

1 **B. The FAC Targets Protected Litigation Conduct under Civ. Code § 47(b)³**

2 The entire factual basis contained in the FAC targets privileged conduct and communications
3 under Civ. Code § 47(b), which provides in relevant part:

4 A privileged publication or broadcast is one made...(b) In any (1) legislative
5 proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized
6 by law, or (4) in the initiation or course of any other proceeding authorized by law
and reviewable pursuant to Chapter 2...

7 The entire FAC arises entirely from the privileged litigation conduct of Defendant in the
8 course of defending the third-party Insured against Plaintiff's prior lawsuit. No amendment could
9 possibly transform any of the alleged conduct into non-privileged activity, the litigation privilege
10 presents an incurable legal bar.

11 Defendants concurrently seek relief under Code of Civil Procedure section 425.16. While
12 the demurrer independently disposes of the FAC as a matter of law, the Anti-SLAPP motion
13 provides an alternative and independent basis for dismissal and recovery of fees.

14 The demurrer should therefore be sustained **without leave to amend.**

15 **C. Collateral Estoppel**

16 Plaintiff is estopped from attempting this end-around of this Court's underlying jury verdict
17 and entry of judgment.

18 "A collateral attack is an attempt to avoid the effect of a judgment or order made in some
19 other proceeding." *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
20 *Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) "An attack in a second action on an earlier
21 judgment is collateral." (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) "A
22 judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment
23 is void on the face of the record." (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, "collateral
24 estoppel precludes relitigation of issues argued and decided in prior proceedings." (*Singh v.*
25 *Lipworth* (2014) 227 Cal.App.4th 813, 826.)

26 ///

27 ///

28

³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

1 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying
2 case—including CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1); the alleged falsity of that letter
3 (*FAC* ¶ 4); CSAA’s “Fund[ing] and Direct[ing] [of] the Defense” (*FAC* ¶ 22F); and the alleged other
4 “False and Misleading Representations” CSAA allegedly made to the Court while maintaining its
5 “Litigation-Stage Denial Posture.” (*FAC* ¶ 22F). All the key factual allegations against Defendant
6 target the third party claims denial and litigation of that denial, which culminated in a defense verdict
7 and valid judgment. Indeed, all the issues presented in this present FAC were already “argued and
8 decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826); (*see also* RFJN **Ex. H**, *Order*
9 *re Trial Scheduling and MILs*); (RFJN **Ex. P**, *Order Denying Plf’s “Prayer” and 170.6*); (RFJN
10 **Ex. S**, *Notice of Entry of Judgment*).

11 **D. Both Claims in the FAC are Barred by the Statute of Limitations**

12 Plaintiff’s allegations as to CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1) and the
13 alleged falsity of that letter (*FAC* ¶ 4) are well beyond the statute of limitations.

14 The statute of limitations for a claim under the California Unfair Competition Law (UCL),
15 codified in Cal Bus & Prof Code § 17200, is four years. Meanwhile, the statute of limitations for
16 fraud claims in California is three years, as provided under Cal Code Civ Proc § 338. It is also true
17 that “[t]he cause of action... is not deemed to have accrued until the discovery, by the aggrieved
18 party, of the facts constituting the fraud or mistake.”.] *Cansino v. Bank of America* (2014) 224
19 Cal.App.4th 1462, 1472. “To excuse failure to discover the fraud within three years after its
20 commission, a plaintiff also must plead “facts showing that he was not negligent in failing to make
21 the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put
22 him on inquiry. To that end, a plaintiff must allege facts showing the time and surrounding
23 circumstances of the discovery and what the discovery was.” (*Ibid.*)

24 Here, the FAC fails to properly allege timeliness on either the UCL claim or the fraud claim.

25 Factually, the FAC alleges that CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1) was false
26 when issued, in February of 2021. (*FAC* ¶ 4). However, Plaintiff proceeded to litigate the underlying
27 case from 2021 – 2025, culminating in a jury verdict. The FAC fails to allege any “facts showing

28 ///

1 the time and surrounding circumstances of the discovery and what the discovery was.” *Cansino*,
2 *supra*, 224 Cal.App.4th at 1472.

3 Therefore, insofar as CSAA’s claim denial letter (issued in February 2021) is concerned:
4 i) the statute of limitations ran on UCL claim in February 2025; and ii) the statute of limitations ran
5 on the fraud claim in February 2024.⁴

6 **E. No Standing**

7 Plaintiff lacks standing against Defendant in its capacity as insurance carrier for a third-party
8 insured—to whom Plaintiff lost at trial—hence this is also misjoinder.

9 “As a general rule, a third party may directly sue an insurer only when there has been an
10 assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999)
11 71 Cal.App.4th 268.) Further, California courts have consistently held that an attorney cannot be
12 sued by an adverse party for that attorneys’ actions in representing their client, except for an action
13 for malicious prosecution. (*See, e.g., Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v.*
14 *Superior Court*, (1983) 146 Cal. App. 3d 470.)

15 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi
16 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it, and seeks
17 only to sue CSAA for its role in affording a defense to its Insured, through trial. Beyond these
18 threshold bars, there are no specific allegations that CSAA made any specific misleading
19 representations to the Court, whatsoever. Indeed, CSAA—in its role as insurance carrier to the
20 original defendant—did not actually litigate the trial. Indeed, Plaintiff’s FAC improperly imputes
21 the acts of retained insurance defense counsel, against Defendant. Plaintiff cites no authority for the
22 proposition that he can hold an insurance company responsible for the litigation conduct of its third-
23 party insurance defense counsel, while defending a third-party insured. Joinder of CSAA is
24 therefore inappropriate and unsupportable. Therefore, this demurrer should be sustained without
25 leave to amend.

26 ///

27 _____
28 ⁴ The other allegations in the FAC surrounding CSAA’s *trial conduct* (i.e.: CSAA’s “Fund[ing] and Direct[ing] [of]
the Defense” (FAC ¶ 22F); and the alleged other “False and Misleading Representations” to the Court (Ibid.)) may
also be barred by the statute of limitations in Code Civ. Proc. sec. 473.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

VI. CONCLUSION

For the foregoing reasons, Defendant CSAA INSURANCE EXCHANGE respectfully requests this Court sustain its demurrer to this FAC as to both of its causes of action without leave to amend.

Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **MEMORANDUM OF POINTS AND**
7 **AUTHORITIES IN SUPPORT OF DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST**
8 **AMENDED COMPLAINT (“FAC”).**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney’s 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party’s residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert